

Court No. - 40

Case :- WRIT - C No. - 5092 of 2023

Petitioner :- Vijay Kumar Gupta

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Babu Lal Ram, Krishna Mohan Gupta

Counsel for Respondent :- C.S.C, Udit Chandra

Hon'ble Mahesh Chandra Tripathi, J.

Hon'ble Vivek Kumar Singh, J.

Heard learned counsel for the petitioner, learned Standing Counsel for the State respondents and Shri Udit Chandra, learned counsel for Electricity Department.

Present writ petition has been preferred for quashing the order dated 6.1.2023 passed by respondent no.4 as well as the recovery citation dated 1.10.2022 issued by respondent no.3; for a direction to respondents to restore the electricity connection of the petitioner and for a further direction to respondents not to recover Rs.18,03,382/- from the petitioner pursuant to recovery citation dated 1.10.2022.

Sri Udit Chandra, learned counsel for Electricity Department submits that there is outstanding dues of electricity against the petitioner and without clearing the same, the electricity connection can not be restored.

Learned counsel for the petitioners submits that the petitioner is intended to clear the outstanding amount in easy installments as per provisions under Clause 6.14 of U.P. Electricity Supply Code 2005.

Learned counsel for the Electricity Department has not objected the prayer. He submits that the Department is interested in realizing the entire due amount. In case the petitioner deposits some amount showing his bonafide, there shall be no hassle in restoring electricity connection to the petitioner.

Be that as it may, no useful purpose would be served in keeping the writ petition pending consideration. The writ petition, on consent, is **disposed off** with observations that in case the petitioner deposits a sum of Rs.5 lacs within one month from today, the respondents are directed to restore electricity connection to the petitioner and thereafter shall fix easy installments under Clause 6.14 of U.P. Electricity Supply Code 2005. It is also provided that petitioner will pay installments as well as regular bill timely, failing which the recovery will automatically revive.

Order Date :- 14.2.2023

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